

Urvishkumar vs Regional on 9 March, 2010

Author: K.A.Puj

Bench: K.A.Puj

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SCA/1384/2010 10/ 11 JUDGMENT

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL
CIVIL APPLICATION No. 1384 of 2010

For
Approval and Signature:

HONOURABLE
MR. JUSTICE K.A. PUJ

=====

1

Whether

Reporters of Local Papers may be allowed to see the judgment ?

2

To

be referred to the Reporter or not ?

3

Whether

their Lordships wish to see the fair copy of the judgment ?

4

Whether

this case involves a substantial question of law as to the interpretation of the constitution of India, 1950 or any order made thereunder ?

5

Whether

it is to be circulated to the civil judge ?

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URVISHKUMAR
SAVITRIBEN PATEL

Versus

REGIONAL
PASSPORT OFFICER THRO.SUPERINTENDENT) & 1

=====

Appearance

:

MR HM PARIKH for Petitioner

MR
RASESH H PARIKH for Petitioner
NOTICE SERVED BY DS for Respondent
No.1
MR PS CHAMPANERI for Respondent
No.2

=====

CORAM

:

HONOURABLE

MR. JUSTICE K.A.PUJ

Date
: 09/03/2010

ORAL
JUDGMENT

[1] RULE.

Mr.P. S. Champaneri, learned Assistant Solicitor General waives service of notice of rule on behalf of the respondents.

[2] Looking to the issue involved in the present matter, this petition is taken up for final hearing, today.

[3] The petitioner has filed this petition under Article 226 of the Constitution of India praying for quashing and setting aside the communication dated 13.03.2009 at Annexure - D to this petition and seeking direction to the respondent No.1 to issue passport to the petitioner in the name of Urvishkumar Savitriben Patel.

[4] Heard Mr.Rasesh H. Parikh, learned advocate appearing for the petitioner and Mr.P. S. Champaneri, learned Assistant Solicitor General appearing for the respondents.

[5] It is the case of the petitioner that the petitioner was born on 6.8.1991 at Village : Vadu in Padra Taluka of Vadodara District. The names of petitioner's biological parents are Jashbhai Raojibhai Patel and Bhavnaben Jashbhai Patel respectively. The father of the petitioner had two sisters, out of one sister Savitriben is a resident of USA. She had married to one Thakorbbhai Patel but they had no issue out of the said marriage. Later Savitriben obtained divorce from her husband from Competent Court in USA on 30.5.2002. Being issueless, Savitriben had lot of love and affection towards the

petitioner since his birth and she had always shown her willingness to adopt the petitioner.

[6] It is the further case of the petitioner that a registered deed of adoption came to be executed on 18.12.2003 between Savitriben and biological parents of the petitioner for adopting the petitioner by Savitriben. Thereafter, the Savitriben filed Civil Misc. Application No.117/2007 under Sections 7, 9 and 24 of the Hindu Adoptions and Maintenance Act, 1956 before the District Court at Anand for issuance of Adoption Certificate. The said application of Savitriben was allowed by the learned Presiding Officer and 5th Fast Track Court, Anand vide order dated 4.12.2007. The petitioner, therefore, became legally adopted son of Savitriben.

[7] It is the further case of the petitioner that the petitioner, thereafter, applied for passport before the respondent No.1 on 08.12.2008 in the name of Urvishkumar Savitriben Patel. The petitioner submitted all the requisite documents along with the application for passport. The respondent No.1 issued letter dated 19.1.2009 to the petitioner calling him to submit six documents mentioned therein which also included submitting a certificate from American Government duly attested by Indian Mission that this kind of adoption is valid and legal as per American laws. The respondent No.1, thereafter, issued another letter dated 13.3.2009 to the petitioner inter alia stating that the file of the petitioner for passport was closed and the petitioner was advised to submit the application afresh stating names of his biological parents. This order of the respondent No.1 which is under challenge in the present petition.

[8] This Court has issued notice on 15.02.2010 and pursuance of the said notice, Mr.P. S. Champaneri, learned Assistant Solicitor General has appeared and placed on record an affidavit-in-reply of the Deputy Passport Officer dated 19.02.2010.

[9] Mr.Rasesh H. Parikh, learned advocate appearing for the petitioner has submitted that the insistence of the respondent No.1 for a certificate from U.S. Authority is not required at this stage. He has further submitted that this is outside the purview of the Government of India. He has further submitted that such certificate can be issued by U.S. Consulate only at the time of issuing VISA to the petitioner. He has further submitted that the petitioner has complied with all the requirements which are mentioned in the communication dated 19.01.2009, except one as mentioned at Sr.No.6. He has further submitted that the requirement as mentioned at Sr.No.6 is not relevant for the purpose of issuing passport to the petitioner. The question with regard to issuance of certificate by the U.S. Government duly attested by the Indian Mission certifying that this kind of adoption is legal and valid as per the American laws, is not within the purview of the office of the respondent No.1. He has further submitted that for the purpose of issuance of passport to the petitioner legality or validity or otherwise of the adoption of the petitioner by Savitriben, is not relevant issue at all. It is submitted that the passport is such a document which enables the petitioner to travel to any country of his choice as and when the petitioner gets VISA from such country. The petitioner being the citizen of India, cannot be denied the issuance of passport by the respondent No.1 authority on this ground.

[10] Mr.Parikh has further submitted that the petitioner is born in India and is an Indian citizen. This fact is sufficient for the respondent No.1 to issue passport to the petitioner particularly when

the petitioner has submitted all the documents and has complied with all the requisite legal formalities for being issued Indian passport.

[11] Mr.Parikh has further submitted that the respondent No.1 has not assigned any reason in the communication dated 13.3.2009 for closing the file of the petitioner. It is not clear from the said communication that for which reason the file of the petitioner for issuance of passport is closed. The petitioner has been legally and validly adopted by Savitriben who is a widow and hence, the petitioner had applied for passport in the name of Urvishkumar Savitriben Patel. He has, therefore, submitted that the respondent No.1 authority ought not to have closed the file of the petitioner nor the said authority ought to have advised the petitioner to apply for passport afresh stating names of his biological parents.

[12] Mr.Parikh has further submitted that the respondent No.1 authority is governed by Indian laws. It is submitted that the petitioner is legally adopted by Savitriben and Competent Court has also issued Adoption Certificate and hence, there is no reason for the respondent No.1 not to issue the passport to the petitioner in the name of Urvishkumar Savitriben Patel. He has further submitted that the Civil Court has specifically observed while passing the order that the applicant i.e. Savitriben is permitted to obtain the passport of minor Urvishkumar as guardian and adoptive parent of the child and she is further permitted to take minor with her at Abroad.

[13] In view of the above, Mr.Parikh has placed reliance upon the decision of this Court in the case of Ambalal Shankarbhai Patel Vs. Union of India, reported in 1992 (2) GLR 1317 wherein the Court was of the view that even though the adoptive parents had acquired foreign domicile, they had moorings in India and continue to follow their personal law despite change in domicile and the country of domicile of their choice namely, United States, recognizes such foreign adoptions. In the United States, on the doctrine of comity, children of foreign adoption whose rights are to be adjudicated in the forum are regarded in the same light as though they had been duly adopted under the laws of the forum, at least in so far as real estate is concerned, even though the foreign adoption may be by a method different from the domestic one. Since the child is already allowed to leave India and is with the adoptive parents in the United States pursuant to the adoption evidenced by the Deed of Adoption dated 18/07/1988, the paramount welfare of the child requires that now he should not be disturbed especially when, prima facie, the Court was satisfied that his adoption is valid due to the adoptive parents having their moorings in India and having preserved their personal law entitling them to make a valid adoption under the Hindu Adoptions and Maintenance Act, which adoption would be recognised by the United States where they have been now domiciled.

[14] In light of the above observation, Mr.Parikh has strongly urged that there is no reason for the respondent No.1 to insist for the above referred certificate for issuance of the passport and for want of the said certificate to close the file of the petitioner. He has, therefore, submitted that the respondent No.1 be directed to re-open the file of the petitioner and to issue the passport as prayed for.

[15] Mr.P. S. Champaneri, learned Assistant Solicitor General appearing for the respondents has submitted that the petitioner has not furnished the certified copy of valid adoption deed showing

adoption of child. He has submitted that the adoptive mother of petitioner is foreign national. She is holding US passport as well, hence she was asked to submit all pages of her passport, however, she failed to submit in stipulated time. Mr. Champaneri has further submitted that the insistence of the certificate made by the respondent No.1 is in accordance with the guidelines based on the Hague conveyance. He has further submitted that the guidelines inter alia stating that in the case of adoption of a child living with its biological / natural guardian an Indian National living Abroad or by a Foreign National of Indian origin living Abroad, if the adoptive parents and the child to be adopted are Hindus, the adoption can be done under the Hindu Adoption and Maintenance Act, 1956, provided the adoptive parents have moorings in India. No Court order is required for such adoptions. What is required is a legally valid adoption, evidenced by a duly drawn up adoption deed and its registration with the Registrar. The Act covers Hindu adoptions in India and also adoptions by parents, who are foreign nationals of Indian origin provided they are Hindus and have moorings in India. The adoptive parents should also establish that the law of their country recognizes their personal law in the matter of adoption. This Act also covers Buddhists, Jains and Sikhs.

[16] On the basis of the aforesaid reference, Mr. Champaneri has submitted that the certificate which is required by the respondent No.1 is a must and unless and until such certificate is produced, the Passport Authority should not be directed to issue such passport. He has further submitted that in the case of *Ambalal Shankarbhai Patel Vs. Union of India*, reported in 1992 (2) GLR 1317 relied upon by the petitioner it is also made clear that such certificate is necessary. He has invited attention of the Court to the observations made by the Court in para-10 of the judgment which shows that a Hindu, who has having his domicile of origin in India having acquired domicile of choice elsewhere will have to establish that he carried the personal law of his family as applicable to him at the time when he left India and that he continues to follow the same and further that the law of the country of his domicile of choice recognises such personal law in the matter of adoption and therefore his right to adopt under Section 6(1) is recognised as a subsisting right even in the country where he has settled by acquiring domicile of choice. The Court has further observed in that judgment that the welfare of the child stringently demands such enquiry to ensure that the child adopted by such Hindu who had acquired domicile of choice but has preserved personal law of his family should be recognised as the child of the adoptive father or the mother for all purposes with effect from the date of the adoption as envisaged by section 12 of the Hindu Adoptions and Maintenance Act. He has, therefore, submitted that unless and until such certificate is produced, no passport can be issued in favour of the petitioner.

[17] Having heard learned advocates for the parties and having considered the documents produced on record as well as relevant statutory provisions and the judgment relied upon by both the parties, this Court is of the view that the petitioner has complied with all the requirement in the present case. The insistence for submission of certificate in the fact of the case, is not necessary as before applying the passport by the petitioner, the petitioner's adoptive mother has already approached the Civil Court and after examining all the aspects of the matter, the Civil Court has specifically held that adoptive mother is permitted to obtain the passport of minor Urvishkumar as a guardian and adoptive parents of the child. The Civil Court has further permitted the adoptive mother to take minor Urvishkumar with her at Abroad. Once the specific finding is given by the Competent Court, the respondent No.1 cannot deny the issuance of the passport in favour of the petitioner. The

insistence for the certificate is also contrary to the observation made by this Court. There is no dispute about the fact that the adoptive mother, who is a foreign Indian national had moorings in India. She adopted the petitioner by drawing deed of adoption which is duly registered and there is already consent of biological parents and even the Competent Court has also certified the said adoption deed. Once all these formalities are over and the passport is demanded, the same cannot be denied by the respondent authority merely on the ground that the petitioner has not produced the certificate. As a matter of fact, even the adoptive mother has continued to follow the personal law in USA as rightly observed by the Division Bench of this Court in above referred judgment that United States recognizes such foreign adoption. It is required to be viewed from this angle especially when all legal formalities are observed and adoptive mother is ready and willing to adopt the son and to take away with her and when the biological parents of the child have no objection against the adoptive mother taking away the son with her at Abroad. The respondent No.1 should not insist such certificate. Even otherwise, Division Bench of this Court has rightly observed that the Indian law of adoption is duly recognised by USA and no objection has taken by the US Government. Even in the cited case, the child was allowed to travel with his adoptive parents without insisting of such certificate.

[18] Considering the entire facts and circumstances of the case, the Court is of the view that the prayer made in the present petition deserves to be granted. The respondent No.1 is directed to revive the close file of the petitioner and issue the passport in favour of the petitioner in the name of Urvishkumar Savitriben Patel. The petitioner is hereby directed to deposit sum of Rs.5,000/- [Rupees Five Thousand Only] before the Passport Authority being costs of the petition.

[19] In view of the aforesaid observations and directions, this petition is disposed of. Rule is made absolute to the above extent. Direct service is permitted.

[K. A. PUJ,J.] (vijay)